

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO
Magistrate Judge Craig B. Shaffer

Civil Action No. 10-cv-00309-CBS-BNB
Date: March 26, 2012

FTR - Reporter Deck - Courtroom A402
Courtroom Deputy: Robin Mason

KIMBERLEY N. SQUIRES, *by and through her
guardian and natural parent, Lyle K. Squires,*

Theodore Thomas Metier
Richard Waldron Bryans , Jr.
Gregory A. Gold
Colleen M. Parsley

Plaintiff,

v.

BRECKENRIDGE OUTDOOR EDUCATION
CENTER, *a Colorado corporation,*

John W. Grund
Deana R. Dagner
Joan S. Allgaier

Defendant.

COURTROOM MINUTES/MINUTE ORDER

Trial to Jury - Day One

8:42 a.m. COURT IN SESSION

Court calls case. Appearances of counsel.

Jury not present.

Discussion between court and counsel.

ORDERED: Witnesses sequestered.

Discussion regarding voir dire.

9:05 a.m. COURT IN RECESS

9:23 a.m. COURT IN SESSION

Jury panel present.

Introduction of the court, counsel and parties, and courtroom personnel.

Court's preliminary statements to the jury panel.

Jurors sworn for voir dire.

Fourteen jurors called to the jury box.

Voir dire by the Court.

10:42 a.m. Voir dire by Mr. Metier.

11:00 a.m. COURT IN RECESS

11:09 a.m. COURT IN SESSION

11:09 a.m. Continuation of voir dire by Mr. Metier.

11:14 a.m. Voir dire by Mr. Grund.

Juror excused for cause: 241004
215108
235631

Plaintiff's challenges: 221409
208526
206676

Defendant's challenges: 225578
229621
224327

11:52 a.m. COURT IN RECESS

11:55 a.m. COURT IN SESSION

Eight selected jurors addressed by court:

12:15 p.m. COURT IN RECESS

1:11 p.m. COURT IN SESSION

Jury is not present.

Plaintiff's Exhibits 101 and 308 are stipulated and admitted.

Defendant's Exhibits P2; Y2; Z2; C3; E3; Goodwin Q; and F3 are stipulated and admitted.

Jury present.

Eight jurors sworn to try the case: 205700
222256
207502
205726
231348
223131
215849
237194

Court's preliminary instructions the jury.

1:49 p.m. Opening statement by Mr. Metier.

2:37 p.m. Opening statement by Mr. Grund.

Jury is not present.

Discussion between court and counsel.

3:17 COURT IN RECESS

3:29 COURT IN SESSION

Jury present.

3:32 p.m. Plaintiff's witness, James M. Goodwin, sworn.

3:32 p.m. Direct examination of Mr. Goodwin by Mr. Metier.

4:13 p.m. Cross examination of Mr. Goodwin by Mr. Grund.

4:24 p.m. Deposition of James M. Goodwin opened and used for impeachment.

4:39 p.m. Re-direct examination of Mr. Goodwin by Mr. Metier.

4:44 p.m. Jury excused until tomorrow morning at 8:00 a.m.

4:53 p.m. COURT IN RECESS

TRIAL CONTINUED.

Total Time: 06:33